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## SUPPLY AGREEMENT

This Supply Agreement (·Agreement·) is entered into as of March 1, 2025 (·Effective Date·) by and between:

BlueHorizon Manufacturing, Inc., a Delaware corporation with principal offices at 1024 Harborview Drive, Wilmington, DE 19801 (·Supplier·),

and

GreenLeaf Foods, LLC, a Delaware limited liability company with principal offices at 4527 Park Avenue, Dover, DE 19901 (·Buyer·).

Supplier and Buyer are each referred to herein as a ·Party· and collectively as the ·Parties·.

## RECITALS

WHEREAS, Buyer desires to purchase from Supplier, and Supplier desires to sell to Buyer, certain products under the terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the mutual covenants contained herein and for other good and valuable consideration, the sufficiency and receipt of which are hereby acknowledged, the Parties agree as follows:

### 1. DEFINITIONS

1.1 ·Products· means the food-grade biodegradable packaging materials described in Exhibit A attached hereto.

1.2 ·Purchase Order· means any written or electronic order submitted by Buyer specifying quantities, delivery dates, and other details for Products pursuant to this Agreement.

1.3 ·Delivery Date· means the date on which Supplier delivers Products to Buyer's designated location as specified in a Purchase Order.

1.4 ·Purchase Price· means the price per unit of Products as set forth in Section 4 below.

### 2. SUPPLY OF PRODUCTS

2.1 Supply Commitment. Supplier agrees to supply, and Buyer agrees to purchase, the Products listed and described in Exhibit A in accordance with the terms of this Agreement.

2.2 Forecasting and Ordering. Buyer shall provide Supplier with a rolling forecast of anticipated Product needs with a minimum of six (6) months' projected quantity updates, to be revised quarterly. Buyer shall submit Purchase Orders at least sixty (60) days prior to the requested Delivery Date.

2.3 Delivery. Supplier shall deliver Products FOB Buyer's warehouse located at 12 Industrial Parkway, Dover, DE 19901, on or before the Delivery Date specified in each Purchase Order. Risk of loss shall transfer to Buyer upon delivery.

2.4 Inspection. Buyer shall have ten (10) business days after receipt of Products to inspect and notify Supplier in writing of any non-conforming Products. Supplier shall, at Supplier's option, promptly replace non-conforming Products or credit Buyer for such non-conforming Products.

### 3. TERM AND TERMINATION

3.1 Initial Term. This Agreement shall commence on the Effective Date and shall continue for a period of two (2) years, expiring on February 28, 2027 (·Initial Term·).

3.2 Automatic Renewal. Upon expiration of the Initial Term, this Agreement shall automatically renew

for successive one (1) year terms (each a "Renewal Term") unless either Party provides the other with written notice of non-renewal at least ninety (90) days prior to the expiration of the then-current term.

3.3 Termination for Cause. Either Party may terminate this Agreement upon thirty (30) days' written notice if the other Party materially breaches any provision of this Agreement and fails to cure such breach within the thirty-day period.

3.4 Termination for Convenience. Buyer may terminate this Agreement for convenience upon one hundred eighty (180) days' prior written notice to Supplier, provided that Buyer shall pay any outstanding amounts due for Products delivered prior to termination.

#### 4. PRICES AND PAYMENT

4.1 Purchase Price. The Purchase Price for Products shall be as set forth in Exhibit A. Prices are exclusive of taxes, customs duties, and shipping fees unless otherwise specified.

4.2 Price Adjustments. Supplier may propose adjustments to the Purchase Price annually, provided Supplier provides Buyer with at least ninety (90) days' prior written notice, including supporting documentation for the proposed adjustment. Any price changes shall become effective only upon mutual written agreement.

4.3 Payment Terms. Buyer shall pay Supplier within thirty (30) days of receipt of an undisputed invoice. Invoices shall itemize quantities, unit prices, and total amount due. Late payments shall bear interest at the rate of one and one-half percent (1.5%) per month or the maximum rate allowed by law, whichever is less.

4.4 Taxes. Buyer shall be responsible for all sales, use, excise, and other taxes associated with the purchase of Products, excluding taxes based on Supplier's net income.

#### 5. WARRANTIES

5.1 Supplier represents and warrants that the Products shall:

- (a) conform to specifications set forth in Exhibit A;
- (b) be free from defects in material and workmanship;
- (c) comply with all applicable laws, rules, and regulations relating to their manufacture and sale;
- (d) be suitable for the intended use as biodegradable packaging materials.

5.2 Disclaimer. EXCEPT AS EXPRESSLY PROVIDED IN THIS SECTION 5, SUPPLIER MAKES NO OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

#### 6. CONFIDENTIALITY

6.1 Definition. "Confidential Information" means any non-public, proprietary information disclosed by one Party to the other during the term of this Agreement.

6.2 Obligations. Each Party agrees to maintain Confidential Information in strict confidence and to use it solely for purposes of performing under this Agreement. Confidential Information shall not include information that (i) is or becomes publicly available without breach of this Agreement, (ii) is independently developed by the receiving Party, or (iii) is received from a third party without confidentiality obligations.

#### 7. LIMITATION OF LIABILITY

7.1 IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT, INCLUDING LOST PROFITS, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

7.2 EXCEPT FOR DAMAGES ARISING FROM A PARTY'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, THE TOTAL LIABILITY OF EITHER PARTY SHALL NOT EXCEED THE AMOUNTS PAID OR PAYABLE BY BUYER TO SUPPLIER UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

## 8. GENERAL PROVISIONS

8.1 Force Majeure. Neither Party shall be liable for delays or failures due to causes beyond reasonable control, including acts of God, war, terrorism, embargoes, government orders, labor disputes, or shortages of materials.

8.2 Assignment. Neither Party may assign this Agreement or any rights or obligations hereunder without the other Party's prior written consent, except to a successor in interest by merger or acquisition.

8.3 Notices. All notices under this Agreement shall be in writing and delivered by hand, certified mail, or nationally recognized overnight courier to the addresses set forth above or such other address as either Party may designate in writing.

8.4 Entire Agreement. This Agreement, including all Exhibits and Purchase Orders, constitutes the entire agreement between the Parties and supersedes all prior agreements pertaining to its subject matter.

8.5 Amendments. Any amendments or modifications must be in writing and signed by authorized representatives of both Parties.

8.6 Severability. If any provision of this Agreement is held invalid or unenforceable, the remainder shall continue in full force and effect.

8.7 Governing Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware without regard to its choice of law rules. The Parties agree to submit to the exclusive jurisdiction of the courts of the State of Delaware for any disputes arising hereunder.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

BLUEHORIZON MANUFACTURING, INC.

By: /s/ Thomas A. Buchanan  
Name: Thomas A. Buchanan  
Title: Chief Executive Officer  
Date: March 1, 2025

GREENLEAF FOODS, LLC

By: /s/ Maria K. Solis  
Name: Maria K. Solis  
Title: Managing Member  
Date: March 1, 2025

## EXHIBIT A

### PRODUCTS, PRICES, AND SPECIFICATIONS

1. Product Description: Food-grade biodegradable packaging film, 12-micron thickness, plant-based polymer.
2. Unit Price: \$3.75 per square meter.
3. Minimum Order Quantity: 10,000 square meters per Purchase Order.
4. Quality Standards: Products shall meet ASTM D6400 standards for compostability.

5. Delivery Location: Buyer-s warehouse at 12 Industrial Parkway, Dover, DE 19901.

6. Packaging: Rolls of 500 square meters each, wrapped in recyclable paper tubes.

End of Agreement